

(2) The expression "freshwater fish" means fish of any kind other than salmon which live permanently or periodically in fresh water.

•2.—(1) This Act may be cited as the Salmon and Freshwater Fisheries Act, 1921, and may be cited with the Salmon and Freshwater Fisheries Acts, 1861 to 1907, and the Fisheries (Ireland) Acts, 1812 to 1909. Short title.

(2) For the purposes of section six of the Government of Ireland Act, 1920, this Act shall be deemed to be an Act passed before the appointed day. 10 & 11
Geo. 5. c. 67.

CHAPTER 39.

An Act to make further provision with respect to Admiralty Pensions, and with respect to Pensions, Grants, or Allowances payable under the Injuries in War (Compensation) Acts, and the Government War Obligations Acts.

[17th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Admiralty may on the application of the pensioner, in their discretion and on such terms and subject to such conditions as with the approval of the Treasury they may prescribe, commute, by the payment of a capital sum of money, any Admiralty pension payable to a seaman or marine as defined for the purposes of the Naval and Marine Pay and Pensions Act, 1865. Commuta-
tion of
pensions.

28 & 29 Vict.
c. 73.

(2) If any person applying for commutation wilfully makes any false declaration in relation to any matter or thing required under or in pursuance of this section, he shall be liable on summary conviction to imprisonment for a term not exceeding one month or to a fine not exceeding ten pounds.

2.—(1) The Admiralty may, in their discretion and upon such terms as they think fit, restore either in whole or in part any Admiralty pension which has been forfeited under the Forfeiture Act, 1870. Restoration
of forfeited
pension.
33 & 34 Vict.
c. 23.

(2) During such time as any person whose Admiralty pension has been forfeited, whether under the Forfeiture Act, 1870, or otherwise, is undergoing imprisonment, the Admiralty may in their discretion pay or apply any part of the pension which may be restored, under the foregoing provision or otherwise, to or for the benefit of the wife, children, or other dependents of that person.

(3) This section shall apply to any pension, grant, or allowance—

4 & 5 Geo. 5.
c. 30.
5 & 6 Geo. 5.
c. 18.
5 & 6 Geo. 5.
c. 24.

(a) payable under a scheme framed under the Injuries in War (Compensation) Act, 1914, the Injuries in War (Compensation) Act, 1914 (Session 2), and the Injuries in War (Compensation) Act, 1915; or

(b) for the payment of which provision is made under the Government War Obligations Acts, 1914 to 1918

as it applies to Admiralty pensions :

Provided that in the application of this section to any such pension, grant, or allowance payable under a scheme not administered by the Admiralty, the department by which the scheme is administered shall be substituted for the Admiralty.

Reckoning of
coast-guard
service for
pension.
19 & 20 Vict.
c. 83.

3. So much of section seven of the Coast-Guard Service Act, 1856, as provides that time served in the Coast-Guard shall be reckoned and counted as service for pension, shall not apply in the case of men who whilst serving in the Coast-Guard are in receipt of a pension awarded in whole or in part in respect of their previous service.

Definition.

4. In this Act the expression “Admiralty pension” means any pension awarded and administered by the Admiralty in pursuance of any Order in Council obtained under the Naval and Marine Pay and Pensions Act, 1865, or under the Greenwich Hospital Acts, 1865 to 1898, and, in relation to officers, retired pay.

Short title.

5. This Act may be cited as the Admiralty Pensions Act, 1921.

